

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

sale. Therefore, the sale proceeds sufficiently satisfied the secured indebtedness with interest and costs of action and of sale such that the redemption period is three months from the sale of the property. In other words, the redemption period ended on February 13, 2026.

Plaintiff also argues she is entitled to the surplus funds pursuant to Code of Civil Procedure section 704.850. However, that section only applies if the homestead exemption applies. The court explicitly found the homestead exemption does apply on April 28, 2025. Nor does the attached accounting from plaintiff's federal case state the homestead exemption applies.

Accordingly, plaintiff's motion is denied in its entirety.

7. S-CV-0048518 THERAPUTIC HERBAL v. VINCENT MARKETING SVS.

Defendant Ross Vincent's Motion for Judgment on the Pleadings

Preliminary Matters

Defendant's requests for judicial notice are granted.

The court notes the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company, LLC corporate status and thus it cannot prosecute or defend itself in this action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant moves for judgment on the pleadings as to the entirety of the first amended complaint ("FAC") pursuant to Code of Civil Procedure section 438. Defendant, as the moving party, may move for judgment on the pleadings if either (1) the court does not have jurisdiction over the subject matter in the complaint or (2) the complaint does not state facts sufficient to state a cause of action. (Code Civ. Proc. § 438, subds. (c)(1)(B)(i)–(ii).) "A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all

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material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Ibid.*) Here, a careful review of the FAC, while taking the factual allegations contained therein as true, reveals the FAC alleges minimally sufficient facts to allege the causes of action contained therein. Moreover, plaintiff Therapeutic Herbal Company, LLC status as a suspended corporation is not an element to any of the causes of action and is thus immaterial to determining whether the causes of action are properly pled on its behalf. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) Accordingly, defendant's motion for judgment on the pleadings is denied.

Defendant Ross Vincent's Motion to Dismiss Plaintiff Therapeutic Herbal Company LLC's First Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

The court notes the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company, LLC corporate status and thus it cannot prosecute or defend itself in this action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant moves to dismiss the first amended complaint because the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company LLC corporate status. However, defendant does not provide any legal authority, and the court can discern none, that supports the relief requested. Accordingly, defendant's motion is denied.

Defendant Ross Vincent's Motion for Sanctions Pursuant to CCP Sections 128.5 and 2023.010 Against Attorneys Robert L. Warwick and James L. Arrasmith

Preliminary Matters

Defendant's requests for judicial notice are granted.

The court notes the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company, LLC corporate status and thus it cannot prosecute or defend itself in this

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action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant contends that plaintiff Therapeutic Herbal Company, LLC has engaged in discovery and motion practice despite the Franchise Tax Board suspending its corporate status. However, Code of Civil Procedure section 128.5 does not apply to discovery misuse. And, defendant does not identify any motion that plaintiff Therapeutic Herbal Company, LLC filed whereby defendant thereafter complied with Code of Civil Procedure section 128.5's 21-day safe harbor provision. Finally, defendant does not identify any specific misuses of the discovery process to justify Code of Civil Procedure sections 2023.010 and 2023.030 sanctions. Accordingly, defendant's motion is denied.

8. S-CV-0048670 CAL. ED. FUND v. CAL. PREPARATORY ACAD.

The motion to appoint receiver is dropped from calendar as the court granted the motion on April 24, 2026, after the hearing was advanced by ex parte order.

9. S-CV-0048766 BRANDT, MARGUERITE v. DIAMOND K ESTATES

The motion for summary judgment is dropped from calendar in light of the full dismissal with prejudiced filed with the court on April 28, 2026.

10. S-CV-0051202 KHACHADOURIAN, GILBERT v. COOK, RICHARD

Defendants Richard Noah Cook and Mary Melody Cook's Motion to Quash
Deposition Subpoena for Personal Appearance and Production of Documents and
Things Directed to Bob Eynck

Preliminary Matters

The court agrees to consider Jeffrey Ochrach's declaration filed in response to defendants' reply brief.